

Court No. - 40

Case :- WRIT - C No. - 33969 of 2022

Petitioner :- Seema Mohan

Respondent :- U.P.Electricity Regulatory Commission And Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari, Ajay Singh

Hon'ble Siddhartha Varma,J.

Hon'ble Ajit Singh,J.

Learned counsel for the petitioner states that the petitioner is aggrieved by the fact that the revised load had not been granted to the petitioner.

Learned counsel appearing for the Electricity Department, Sri Narendra Kumar Tiwari may take instructions in the matter as to why the enhanced load had not been sanctioned to the petitioner as per Clause 6.9(V) of U.P. Electricity Supply Code, 2005.

List this case on 23.11.2022 as fresh.

Order Date :- 14.11.2022

R./

Court No. - 3

Case :- WRIT - C No. - 33969 of 2022

Petitioner :- Seema Mohan

Respondent :- U.P.Electricity Regulatory Commission And Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari, Ajay Singh

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Anish Kumar Gupta, J.

Heard Shri Arun Mishra, learned counsel for the petitioner, Sri Ajay Singh, learned counsel for respondent No.1 and Shri Narendra Kumar Tiwari, learned counsel for the respondent no.2.

The petitioner has earlier filed a complaint case No.22 of 2021 (Seema Mohan Vs. Executive Engineer, Naini, Allahabad), which was disposed of by the Consumer Grievance Redressal Forum, U.P.E.R.C. Allahabad by order dated 1.07.2022, as under:-

" विद्युत उपभोक्ता व्यथा निवारण फोरम प्रयागराज

परिवाद सं०-22/21

सीमा मोहन बनाम अधिशाषी अभियन्ता नैनी

01.07.2022

पत्रावली पेश हुई।

उपभोक्ता द्वारा फोरम के समक्ष उसके परिसर पर उसका विद्युत संयोजन के के विरुद्ध विभाग द्वारा लगातार एक्सिस लोड पैनाल्टी चार्ज करने के सम्बन्ध में परिवाद दाखिल किया गया है।

फोरम को अवगत कराया गया कि उसने विभाग से दिनांक 18.12.2017 को 5 किलोवाट संयोजन लिया था, जिसके पश्चात् वह निर्गत विद्युत बिल का भुगतान करता रहा। दिनांक 17.10.18 को प्रवर्तन दल द्वारा उसके परिसर का निरीक्षण किया गया, निरीक्षण आख्या दिनांकित 05.09.2018 को एक्सिस लोड पाये जाने के कारण परिवादी को 25,800/-रु० का बिल दे दिया गया,

उपभोक्ता ने उसका भुगतान कर दिया , परन्तु उसको 6.9(v) सप्लाई कोर्ट 2005 का लाभ न देकर उसके विरुद्ध लगातार एक्सिस लोड की पैनाल्टी चार्ज की जा रही है।

आदेश

विपक्षी को आदेशित किया जाता है कि वे दिनांक 17.10.2018 के पश्चात् लगातार 3 माह तक बढ़ा हुआ विद्युत भार प्राप्त हुआ है , तब से उपभोक्ता का उपरोक्त सप्लाई कोर्ट 6.9(v) का लाभ देते हुए भार बढ़ा दिया जाये एवं पूर्व में प्राप्त की गयी धनराशि का समायोजन कर दिया जाये। अतः परिवाद समाप्त किया जाता है।

ह०

ह०

(प्रदीप
सोनकर)
(शिव कुमार पाठक)

कुमार

सचिव

तकनीकी सदस्य

1.7.22"

सदस्य (तकनीकी)

उपभोक्ता शिकायत प्रतितोष फोरम

इलाहाबाद"

Since the respondents have not giving effect to the aforequoted order of the Consumer Grievance Redressal Forum, therefore, the petitioner has filed the present writ petition praying for the

following relief;

"(i) Issue a writ, order or direction in the nature of mandamus commanding the respondent no.2 to revise the bill after giving benefit of Clause 6.9 (V) of U.P. Electricity Supply Code, 2005 in compliance to the order of Consumer Grievance Redressal Forum, Allahabad (Annexure -1)."

On 14.11.2022, this Court passed the order directing the respondent no.2 to obtain instruction.

Today, learned counsel for respondent no.2 states on instruction of the Executive Engineer dated 25.11.2022 that the bill of the petitioner has been revised.

This statement has been seriously disputed by the learned counsel for the petitioner. He states that load was directed to be enhanced with effect from 17.10.2018 and thus no penalty for the period subsequent to that can be levied.

In view of the order of the Consumer Grievance Redressal Forum, Allahabad dated 1.7.2022, we direct the respondent no.2 to pass an order giving effect to the aforesaid order of the Consumer Grievance Redressal Forum within four weeks from today after affording a reasonable opportunity to the petitioner.

With the aforesaid direction, the writ petition is **disposed of**.

Order Date :- 23.2.2023

SFH